

In Pennsylvania, judicial retention elections are nonpartisan **"YES" or "NO"** ballot questions that allow voters to decide whether a sitting judge should remain on the bench for another 10-year term.

How Judicial Retention Elections Work

1. **Initial Partisan Election vs. Retention:** When a judge first runs for a seat on the PA Supreme Court, Superior Court, Commonwealth Court, or local Court of Common Pleas, they run in a traditional, competitive party primary and general election for a 10-year term.
2. **The Retention Question:** At the end of their 10-year term, judges do not run against an opposing candidate. Instead, they appear on the ballot with a nonpartisan retention question: *"Shall [Judge's Name] be retained for an additional term as Judge of the [Court Name]?"*
3. **No Party Labels:** Retention questions do not list political party affiliations (Democrat or Republican) next to the judge's name.
4. **Approval Threshold:** A judge needs a simple majority (**more than 50% "YES" votes**) to be retained for another 10-year term. Judges may serve consecutive terms until reaching Pennsylvania's mandatory judicial retirement age of 75.
5. **What Happens if a Judge Is Not Retained?** Rejection is extremely rare in Pennsylvania. If a majority votes "NO," the seat becomes vacant at the end of the term. The Governor nominates a temporary replacement (requiring a two-thirds vote in the PA Senate), and a partisan election is held in the next odd-numbered municipal election year to fill the full term.

How to Evaluate Judges on Your Ballot

Because judicial candidates are prohibited by ethics codes from making campaign promises or taking political stances on potential cases, evaluating them requires reviewing their professional credentials, character, and legal ratings.

1. Official Bar Association Ratings

Bar associations conduct thorough, nonpartisan investigations and peer surveys among practicing attorneys and trial lawyers to rate sitting judges:

- **Statewide Courts (Supreme, Superior, Commonwealth):** The Pennsylvania Bar Association (PBA) Judicial Evaluation Commission reviews appellate judges and issues ratings of **Highly Recommended**, **Recommended**, or **Not Recommended**.
- **Local Common Pleas Courts:** Local county bar associations (such as the Bar Association of Lehigh County or neighboring county bar associations) issue evaluation scores and poll local lawyers on the judge's performance.

2. Nonpartisan Judicial Watchdogs & Voter Guides

- **[Pennsylvanians for Modern Courts](#):** A statewide nonpartisan organization that provides judicial educational guides, explains court responsibilities, and compiles candidate questionnaires.
- **[League of Women Voters Voter Guide](#):** Publishes candidate profiles, judicial retention evaluations, and nonpartisan Q&A summaries.

- [Spotlight PA Judicial Retention Guide](#): Offers deep-dive reporting on judicial performance, major rulings, and retention context across Pennsylvania courts.

3. Core Evaluation Criteria

When reviewing a judge's record, focus on five key professional benchmarks:

Criteria	What to Look For
Integrity & Ethics	High ethical standards, absence of disciplinary actions, and impartial rulings.
Legal Ability	Experience in trial procedure, mastery of evidence rules, and clear, well-reasoned written opinions.
Judicial Temperament	Courtesy, patience, even temper, and fairness to all courtroom participants.
Administrative Efficiency	Decisiveness and ability to manage court dockets without excessive delays.
Community & Public Service	Commitment to improving the administration of justice and public education.